

Copyright

A copyright is a form of intellectual property, which protects original works of authorship such as literary (books, periodicals, computer Programs, tables and compilations), dramatic, musical, artistic, cinematographic and sound recording, etc.

It is a bundle of rights; (i) rights of reproduction, (ii) communication to the public, (iii) adaptation, and (iv) translation of the work.

International Treaty on Copyright

The **Berne Convention for the Protection of Literary and Artistic Works** is an international agreement that was adopted in 1886 in Bern, Switzerland. It has been revised from time to time. Its aims to protect the rights of authors of literary and artistic works.

Scope

- **Works Covered:** The convention covers literary and artistic works, including books, music, paintings, sculptures, and films.
- **International Recognition:** Member countries must recognize the rights of authors from other member countries as if they were their own nationals.

Membership

- **Global Reach:** As of now, the Berne Convention has been ratified by 181 countries.
- **World Trade Organization (WTO):** Only countries that are signatories to the Berne Convention can qualify to be members of the WTO.

India is a member of this treaty.

Key Principles

1. **Automatic Protection:** Protection is granted automatically without the need for registration or formalities.
2. **Minimum Standards:** The convention sets minimum standards of protection that member countries must provide to works of authors from other member countries.
3. **Moral Rights:** Authors have the right to claim authorship of their work and to object to any distortion, mutilation, or other modification that would harm their honor or reputation.

Points under this Treaty:

Registration of copyright is not an essential requirement.

The moment an original work is created, it is automatically copyrighted to the author and is simultaneously protected in all the member countries of the Berne Convention.

Copyright Act, 1957 governs the copyright protection in India.

Requirements For Copyright Protection

The copyright law protects the expression of the idea and not the idea. Apart from this, the work shall be original and fixed in a tangible form.

i. Originality

In order to get protection as copyright, the work has to be original and should not be copied from any source.

ii. Fixation

The work shall be fixed in a tangible form or reduced to material form, recorded, written, painted or typed. A work is considered fixed when it is stored on some medium in which, it can be perceived, reproduced, or otherwise communicated. For example, a story is considered fixed when it is written down on paper. The paper is the medium on which the story can be perceived, reproduced and communicated. Similarly, a song is fixed when it is recorded, a computer program code is fixed when it is typed or written.

iii. Expression of idea and not idea itself

Copyright law does not protect the ideas but only expression of the idea. It is sometimes very challenging to draw a line between idea and expression.

Term of Protection:

60 years from death of author: literary, dramatic, musical and artistic works

60 years from date of publication: films, sound recording, pseudonymous publications,
work by any kind of organization

Registration of Copyright:

Register of Copyrights is maintained in the Copyright Office of the Department of Education.

1. Prepare the Work: Ensure that the work is original and fixed in a tangible form (e.g., written, recorded, or saved digitally).
2. Complete the Application: Fill out Form XIV, which is the application form for copyright registration. One can submit this form online through the official Copyright Office website or offline by visiting the office.
3. Pay the Filing Fee: Submit the required filing fee along with application. Fees can vary depending on the type of work and the method of submission.
4. Submit a Copy of Work: Mail or upload a physical or digital copy of the work to the Copyright Office. This completes the submission process for registration.
5. Wait for Confirmation: The Copyright Office will review the submission and, if everything is in order, issue a certificate of registration.

Why Registration is Recommended

1. The certification of copyright registration is an authentic proof of valid title and ownership.
2. Copyright registration establishes a public record of the copyright claim.
3. It is helpful for assignment or licencing of copyright.

Notice of Copyright:

Notice of copyright is an identifier placed on copies of the work. It is optional. It does not require advance permission from, or registration with the Copyright Office. Copyright notice informs the public that the work is protected by copyright, identifies the copyright owner, and shows the year of first publication of the work.

Copyright © 2012 XYZ, All right reserved

Copyright © 2012 XYZ entertainment, All right of the produced and owner of the CD content reserved. Unauthorized copying, public performance and broadcasting of this content/recording is prohibited and punishable under Copyright Act, 1957

Who Owns the Copyright in a Work?

- In the case of a literary work the author
- In the case of a musical work, the composer.
- In the case of a cinematograph film, the producer.
- In the case of a sound recording, the producer.
- In the case of a photograph, the photographer.
- In the case of a computer-generated work, the person who causes the work to be created

Penalties for Copyright Infringement

In India, for example, the **Copyright Act, 1957** outlines the penalties for copyright infringement.

If someone is found guilty of copyright infringement, they could face:

- **Imprisonment:** A minimum of six months, which can extend up to three years.
- **Fines:** A minimum fine of Rs. 50,000, which can go up to Rs. 2 lakhs.

These penalties are meant to deter unauthorized use of copyrighted works and protect the rights of the copyright holders.

What Is Copyright Infringement?

Anyone who exploits any of the exclusive rights of copyright without the copyright owner's permission commits copyright infringement. Infringement could be either literal or non-literal. Literal infringement is the exact copying of original work and it can be verified by comparing original and copied work, while "non-literal" copying is paraphrased, or loosely paraphrased.

In order for a court to determine that a copyright in a work has been infringed, it must find that:

- (1) The infringing work is "substantially similar" to the copyrighted work
- (2) The alleged infringer had access to the copyrighted work
- (3) There are no clear rules for deciding what is "substantial similarity". Courts look for similarities in appearance, sound, words, format, layout, sequence, and other elements of the works.

What is Fair Use in Copyright

Fair use is a legal doctrine that allows limited use of copyrighted material without needing to obtain permission from the copyright owner. It's designed to balance the interests of copyright holders with the public's need to access and use creative works.

Fair use include:

1. **Research and Education:** Using copyrighted material for educational purposes, such as in a classroom or for academic research.
2. **Criticism and Review:** Quoting parts of a work for criticism, review, or commentary, provided it is properly attributed.
3. **News Reporting:** Using portions of a work in news reporting to inform public.
4. **Parody and Satire:** Creating a parody or satire that transforms the original work in a way that is considered fair use.
5. **Personal Use:** Making a copy of a work for personal, non-commercial use.

Copyright Violation and Plagiarism

Copyright Violation involves the unauthorized use and distribution of copyrighted material.

Plagiarism is the act of presenting someone else's work, ideas, or expressions as your own without proper acknowledgment.

In India, plagiarism can lead to both civil and criminal penalties under the Indian Copyright Act, 1957. Here are the key legal penalties:

Civil Penalties

- **Damages and Injunctions:** Under Section 57, the author can claim damages and seek an injunction if their work is distorted, mutilated, or modified in a way that harms their honor or reputation.

Criminal Penalties

- **Imprisonment:** Under Section 63, plagiarism can lead to imprisonment for a term of six months to three years.
- **Fines:** The offender may also be fined between ₹50,000 and ₹2,00,000 (approximately \$625 to \$2,500).
- **Repeat Offenses:** For repeat offenses, the penalties are more severe, with imprisonment ranging from one to three years and fines between ₹1,00,000 and ₹2,00,000 (approximately \$1,250 to \$2,500).

Plagiarism is taken seriously in both academic and professional settings, and it's important to always give proper credit to the original authors to avoid these penalties.

Owner of copyrighted work can transfer his rights to anyone by means of:

- Assignment
- License

Assignment is a permanent transfer of rights where license agreement can be executed for a specified duration of time. The assignment shall be in writing signed by the assignor (copyright owner) or by his duly authorised agent. It shall mention the specific works and specify the rights assigned and the duration and territorial extent of such assignment. It shall also specify the amount of royalty payable to the author or his legal

heirs during the currency of the assignment and the assignment shall be subject to revision, extension or termination on terms mutually agreed upon by the parties. If the period of assignment is not stated, it shall be deemed to be five years from the date of assignment. If the territorial extent of the assignment of the rights is not specified, it shall be presumed to extend within the whole of India.

Difference between Plagiarism, Copyright Infringement, Piracy

Plagiarism

- **Definition:** Presenting someone else's ideas, words, or work as your own without proper attribution.
- **Nature:** Ethical/academic misconduct.
- **Scope:** Covers ideas, research, and text even if not protected by copyright.
- **Example:** Copying a paragraph from a thesis or article, rephrasing it, and submitting it as your own without citation.
- **Consequence:** Academic penalties (expulsion, degree cancellation, blacklisting). Not always a legal offense unless copyright is also violated.

Copyright Violation (Copyright Infringement)

- **Definition:** Unauthorized use of someone's copyrighted work (literary, artistic, musical, software, etc.).
- **Nature:** Legal offense under copyright law.
- **Scope:** Protects the *expression* of ideas, not the ideas themselves.
- **Example:** Copying and publishing a book chapter without permission.
- **Consequence:** Civil lawsuits, damages, fines, and imprisonment (in India, up to 3 years under the Copyright Act, 1957).

Piracy

- **Definition:** Large-scale, often commercial, unauthorized reproduction and distribution of copyrighted works.
- **Nature:** Criminal offense.
- **Scope:** Typically involves movies, music, software, or books distributed illegally.
- **Example:** Selling pirated DVDs, uploading cracked software, or distributing movies on torrent sites.
- **Consequence:** Severe penalties — fines, imprisonment, and seizure of goods.

Quick Comparison Table

Aspect	Plagiarism	Copyright Violation	Piracy
Definition	Using others' work without credit	Unauthorized use of copyrighted work	Illegal mass distribution of copyrighted work
Nature	Ethical/academic misconduct	Legal offense	Criminal offense
Scope	Ideas, text, research	Expression of ideas (books, art, music, software)	Large-scale reproduction/distribution
Example	Copying thesis	Publishing book	Selling pirated

Aspect	Plagiarism	Copyright Violation	Piracy
	without citation	chapter without permission	movies/software
Consequence	Academic penalties	Civil/criminal penalties	Criminal prosecution

In short:

- **Plagiarism** = dishonesty in attribution.
- **Copyright violation** = breaking the law by using protected work without permission.
- **Piracy** = large-scale illegal copying/distribution of copyrighted material.

AI Generated Text

Copyright Infringement

- **AI-generated text** is generally considered **machine-created content**.
- Copyright law protects works created by **human authors**. In most jurisdictions (including India, US, EU), purely AI-generated works **do not qualify for copyright protection** because there is no human author.
- Publishing AI-generated writing **does not infringe copyright**, unless:
 - The AI output **copies substantial portions of copyrighted material** (e.g., reproducing a book passage verbatim).
 - The AI was trained on copyrighted works and outputs something nearly identical.

So, if the AI produces original text, publishing it is **not copyright infringement**.

Plagiarism

- Plagiarism is about **academic honesty and attribution**, not law.
- If someone publishes AI-generated writing and **pretends it is their own original thought/research**, it can be considered **plagiarism** in academic or professional contexts.
- Universities and journals often require disclosure if AI tools were used. Failure to disclose may be treated as misconduct.

So, publishing AI-generated text **without attribution or disclosure** can amount to **plagiarism**, even if it's not copyright infringement.

Key Takeaway

- **AI-generated + original** → Not copyright infringement.
- **AI-generated + no disclosure** → Can be plagiarism in academia/professional writing.
- **AI-generated + copies existing work** → Both plagiarism *and* copyright infringement.

When AI violates Copyright

There are already real-world lawsuits where AI outputs have been accused of **copyright infringement**. Courts are actively examining whether AI companies or users are liable when generative models reproduce existing works.

Key Examples of AI Copyright Cases

- **Andersen v. Stability AI (2023)**
 - Filed by a group of visual artists against *Stable Diffusion*.
 - Claim: The AI model allegedly copied and reproduced artists' copyrighted images without permission.
 - Status: Still ongoing, but it set the stage for many similar lawsuits [Copyright Alliance](#).
- **Getty Images v. Stability AI (UK, 2023–2025)**
 - Getty accused Stability AI of scraping millions of copyrighted photos to train its model.
 - Claim: Unauthorized use of Getty's library amounted to copyright infringement.
 - Status: UK trial reached closing stages in 2025, with courts scrutinizing whether training data use counts as infringement [Publishers Association](#).
- **Media Companies vs. OpenAI, Microsoft, Google, Anthropic (2024–2025)**
 - Multiple publishers and news outlets filed suits claiming AI models were trained on copyrighted articles and sometimes reproduced them.
 - Example: The *New York Times* sued OpenAI and Microsoft in late 2023, alleging ChatGPT outputs contained near-verbatim passages from its reporting [sustainabletechpartner.com](#).
- **Anthropic Case (US, 2025)**
 - Court found that downloading books from pirate sites to train AI was **not fair use**, but scanning library books for training was allowed.
 - Shows courts are distinguishing between lawful and unlawful training sources [Publishers Association](#).

What These Cases Show

- **AI itself cannot be sued** (not a legal entity). Responsibility falls on **users** (who publish infringing outputs) or **developers** (who train on copyrighted material).
- **Training vs. Output:** Courts are debating whether using copyrighted works in training is infringement, but reproducing them in outputs almost certainly is.
- **Global Impact:** Lawsuits in the US, UK, and EU are shaping how copyright applies to AI, with no final global consensus yet.

Takeaway

- If AI generates **original content**, publishing it is safe.
- If AI generates **existing copyrighted work**, publishing it can expose the **user** (and sometimes the developer) to copyright liability.

- Courts are still deciding how far copyright law extends to AI training and outputs, but the trend is clear: **verbatim reproduction = infringement**.